
Case	Title / Nature of Case
2:00 PM LINE 1 24-CIV-01928	KIAYSHA COOPER VS. ESSEX PROPERTY TRUST
KIAYSHA COOPER ESSEX PROPERTY TRUST	ANDREW M MORROW ALI DELFOROUGH

Defendant and Cross-Complainant Essex Property Trust, Inc.'s Motion to Compel Plaintiff's Deposition and for Sanctions

TENTATIVE RULING:

Defendant Essex Property Trust, Inc.'s Motion to Compel Plaintiff's Deposition and for Sanctions is GRANTED with respect to the request to compel Plaintiff's deposition and GRANTED-IN-PART, as to Defendant's request for monetary sanctions, pursuant to Code Civ. Proc. section 2025.450, as follows:

Code Civ. Proc. section 2025.450(a) provides that if, after service of a deposition notice, a party to the action "without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it," the noticing party "may move for an order compelling the deponent's attendance and testimony." (Code Civ. Proc. section 2025.450.) Where the deponent fails to attend and produce documents, a motion to compel is required to be accompanied by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. (Id., at subd. (b)(2).)

On January 21, 2026, Defendant served a Notice of Deposition of Plaintiff Kiaysha Cooper on Plaintiff's counsel. (McDonough Decl., ¶¶2-3; Exhs. A, B.) Defendant sent a follow-up email on March 31, 2026, and received a response on April 7, 2026 that included a request for an extension of time to respond to written discovery but did not confirm the deposition. (Id., at ¶¶4-6.) The extension was granted provided the deposition was confirmed, and a further follow-up email was sent April 9, 2026, to which Plaintiff did not respond. (Id., at ¶¶6-8., Exh. C.) There is no evidence in the record that any objection to the Notice of Deposition was served. The deposition was held April 24, 2026, and Plaintiff did not attend. (Id., at ¶9.)

Defendant argues that it has complied with procedural requirements, but the supporting declaration does not indicate that Defendant contacted the deponent (after the date of the deposition) to inquire about the nonappearance. The Motion could therefore be denied for failure to satisfy this requirement. In these circumstances, where Plaintiff's counsel responded to communications attempting to confirm the deposition but did not acknowledge the request to confirm, the Court finds that Defendant's prior attempts at communication substantially comply with the requirement to inquire about the nonappearance. Allowing the motion to proceed is further supported by Plaintiff's failure to comply with the Court's Order to participate in an Informal Discovery Conference or oppose this motion.

The Motion is accordingly GRANTED and Plaintiff is ordered to attend a deposition within 20 days of notice of entry of this order.

Defendant requests an award of monetary sanctions in the amount of \$7,273.02, consisting of \$2,716 in legal fees for counsel attending the deposition, 1.5 hours at \$280/hr preparing the declaration and

supplementing this Motion, 3 hours at a \$250.00/hr associate rate preparing this motion \$147.05 in ground transportation, \$29.72 in meals, \$986.80 in airfare, a \$60.00 filing fee, and an anticipated \$840.00 preparing for and attending the hearing on this Motion. (McDonough Decl., ¶¶10-13.)

Monetary sanctions are awarded in favor of Defendant and against Plaintiff Kiaysha Cooper and Plaintiff's counsel, jointly and severally, in the amount of \$6,433.02, representing all expenses other than the anticipated time, which is not necessary, to be paid within 30 days of notice of entry of this order.

The Court notes that is concerned about the manner, in which Plaintiff is litigating (or not litigating) this case. In addition to this motion and the Plaintiff's failure to comply with the Court's IDC Order, the Court previously denied a motion on June 8, 2026 that lacked any meaningful legal support and there is another discovery motion on calendar that may, especially if no opposition is filed, also evidence a lack of diligence and support additional sanctions.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM LINE 2

24-CLJ-03985 DISCOVER BANK VS. ROSA A GUERRA

DISCOVER BANK
ROSA A GUERRA

CHRISTINE SIDUGUEN

Plaintiff Discover Bank's Motion to Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

APPEAR

Plaintiff should be prepared to address (1) the significance of the fact plaintiff was never served with a summons in this case (or whether the proof of service simply wasn't filed); (2) how plaintiff verified defendant's current address for the purpose of serving this motion; (3) whether defendant has made payments after November 25, 2025; and the (4) the effect of plaintiff's failure to execute the stipulation until November 25, 2025 (after the purported breach had already occurred) and then signing this motion the next day in light of *Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 304-05.
